

**THE PUNJAB TENDOO LEAVES (PROHIBITION ON
POSSESSION AND USE IN THE BORDER-BELT) ACT, 1974
(IV of 1974)**

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TEXT

**¹THE PUNJAB TENDOO LEAVES (PROHIBITION ON POSSESSION AND
USE IN THE BORDER-BELT) ACT, 1974**

(IV of 1974)

[1st March, 1974]

**An
Act**

to provide for prohibition on the possession and use of tendoo leaves in the border-belt of the Province of the Punjab.

Preamble.— WHEREAS it is expedient to provide for prohibition on the possession and use of tendoo leaves in the border-belt of the Province of the Punjab, including the manufacture of bidi and matters incidental and supplemental thereto;

It is hereby enacted as follows:—

1. Short title and commencement.— (1) This Act may be called the Punjab Tendoo Leaves (Prohibition on Possession and Use in the Border-Belt) Act, 1974.

(2) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context—

- (a) “border-belt” means the area extending upto ten miles inside the Province of the Punjab from the International boundary line of Pakistan;
- (b) “Government” means the Government of the Punjab; and
- (c) “tendoo leaf” means a leaf commonly known as such and used for the manufacture of bidi.

3. Restriction on manufacture of bidi and possession of tendoo leaf in the border-belt.— (1) No person shall manufacture bidi in the border-belt.

(2) Without prejudice to the provisions of sub-section (1), no person in the border-belt shall be in possession for any purpose, of any tendoo leaf.

4. Penalties.— (1) Whoever contravenes any provision of this Act, shall be punishable with imprisonment for a term which may extend to three years, or with fine which may extend to ten thousand rupees, or with both.

(2) Where a Court convicts a person of an offence punishable under sub-section (1), the Court shall direct that the bidi or the tendoo leaves in respect of which the offence has been committed be forfeited to Government.

5. Offences by Companies.— If the person contravening any provision of this Act be a company or other body corporate, Managing Director, Managing Agent,

¹This Act was passed by the Punjab Assembly on 8th February, 1974; assented to by the Governor of the Punjab on 1st March, 1974; and, published in the Punjab Gazette (Extraordinary), dated 1st March, 1974, pages 246-A to 246-C.

Managing Partner, Manager, Secretary, and Executive Officer thereof shall, unless he proves that the contravention took place without his knowledge or that he exercised due diligence to prevent such contravention, be deemed to be guilty of such contravention.

6. Procedure.— (1) No Court inferior to that of a Magistrate of the First Class shall try any offence punishable under this Act.

(2) No Court shall take cognizance of any offence punishable under this Act except on the complaint of any Magistrate or a police officer not below the rank of Assistant Sub-Inspector or an Excise Officer not below the rank of Sub-Inspector or any other officer of Government authorised in this behalf by Government.

7. Power to seizure.— Any police officer not below the rank of Assistant Sub-Inspector or any officer authorised by Government in this behalf, may seize the tendoo leaf or bidi together with anything whatsoever used or suspected to have been used in the commission of an offence under this Act.

8. Power to search without warrant.— Any police officer not below the rank of Assistant Sub-Inspector or any other officer authorised by Government in this behalf, may search any person, premises, vessel, vehicle, packages, receptacle or covering as to satisfy himself whether or not an offence under this Act has been committed:

Provided that no premises shall be searched under this section except under the authority of a warrant issued by the Magistrate having jurisdiction in the area.

9. Power to make rules.— Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

10. Repeal of Punjab Ordinance No. XXII of 1973.— The Punjab Tendoo Leaves (Prohibition on Possession and Use in the Border-Belt) Ordinance, 1973 (Punjab Ordinance No. XXII of 1973), is hereby repealed.